Lawyering Skills and Strategies I
CLOSED MEMORANDUM ASSIGNMENT
Fall 2026

INSTRUCTIONS FOR CLOSED MEMORANDUM

1. **Scope:** Draft the Discussion section only of a legal memorandum addressing whether Jalen Fox remains a citizen of Tennessee for federal diversity jurisdiction under 28 U.S.C. § 1332, supporting a potential Motion to Remand.

2. **Formatting:** All formatting, including headings, line spacing, font size, margins, and page numbers, must strictly comply with the Course Information Sheet.

3. **Closed Library:** Do not conduct any outside legal research. You must rely exclusively on the client facts provided—including the intake transcript and the accompanying documents—and the three cases in the assignment packet.

4. **Submission:** Submit your completed Discussion section via Canvas in .docx format by **5:00 p.m. on Sunday, September 20, 2026**.

5. **Honor Code & Collaboration:** All final written work must be entirely your own, but because the written Discussion section itself is ungraded,[1] you may obtain assistance from the Legal Writing Center Fellows. The use of generative AI is not permitted for this assignment.

[1] You will participate in an oral conference with me after September 20th in which you will present your use of the legal authorities and your legal analysis as a whole supporting your Discussion section. This oral conference will be worth 5% of your total course grade.

MEMORANDUM

TO: Associate

FROM: Lizbeth Casco, Partner

DATE: September 1, 2026

SUBJECT: Diversity Jurisdiction Analysis – Domicile of Jalen Fox

In July 2026, we filed a civil action in Tennessee state court in Davidson County (Nashville) on behalf of our client, Jalen Fox, against a tech company headquartered and incorporated in Tennessee. The defendant removed the case to the U.S. District Court for the Middle District of Tennessee, asserting federal diversity jurisdiction under 28 U.S.C. § 1332. The defendant claims that Fox abandoned his Tennessee domicile and acquired a new domicile in Kentucky, creating complete diversity of citizenship and thus subject matter jurisdiction in federal court.

We are considering filing a motion to remand for lack of subject-matter jurisdiction, but we need you to research whether we are likely to succeed on that motion by establishing that Fox remains a domiciliary of Tennessee, which would destroy complete diversity.

Fox has lived in Nashville, Tennessee for the last several years, working as a self-employed musician. In 2023, he purchased land in Bowling Green, Kentucky, and built a home and custom recording studio on the property. The defendant is asserting that Fox is now a Kentucky citizen rather than a Tennessee citizen. Fox tells us that is not the case.

Review the attached intake transcript and the accompanying client documents, and analyze whether Fox remains domiciled in Tennessee or whether he has acquired a new domicile in Kentucky. Use only the three enclosed cases to draft the Discussion section of a memo to me predicting the court's likely holding on the diversity issue. I need your written analysis by no later than 5:00 pm on September 20, as our filing deadline for a motion to remand is September 27.

Thanks.

CLIENT INTAKE INTERVIEW

Date: August 31, 2026

Attorneys: Lizbeth Casco

Client: Jalen Fox

- **Casco:** Jalen, thanks for coming back in. I need to get a clear picture of your living arrangements and long-term plans. Let's start with your life in Tennessee.

- **Fox:** Sure. I moved to Knoxville, Tennessee in 2019 to go to college at the University of Tennessee. I graduated in '23 and moved to Nashville to pursue music full-time.

- **Casco:** When you moved to Nashville, did you buy a house? Rent?

- **Fox:** When I got to Nashville, I rented an apartment; the same apartment that I live in now. It's a two-bedroom, as I've actually been planning for a little while now to propose to my college girlfriend, and I'm thinking the extra space would be good with her, me, and my dog, Banjo. Anyway, I've been living in the same apartment in Nashville for 3 years now.

- **Casco:** Oh, nice. Congratulations! What other connections do you have in Tennessee? Do you have a car that's registered there?

- **Fox:** Yep, I sure do. I'm originally from Kentucky, but once I was able to bring a car to campus for the second year of college, I went ahead and registered it in Tennessee so that I would have Tennessee plates. You get pulled over less often that way – at least that was the theory until, you know, what happened to me in March. But that's neither here nor there.

- **Casco:** Okay, so your car is registered in Tennessee. From what state is your driver's license?

- **Fox:** Also Tennessee. I changed it around the same time that I changed the car registration.

- **Casco:** What else? Where are you registered to vote?

- **Fox:** Currently, it's Tennessee. Once I graduated from college and decided to stay in the state, I registered to vote in Tennessee.

- **Casco:** Alright. Tell me about your work.

- **Fox:** I play mostly local gigs around Nashville, though I sometimes go to other states for special events. I've been to South Carolina, Georgia, and Texas in the last few months.

- **Casco:** I understand that you have some property in Kentucky. What's the story there?

- **Fox:** Sure. Like I said, I'm originally from Kentucky, near Bowling Green. About two years ago, I bought some land in Bowling Green—about an hour's drive from Nashville—and I built a ranch-style home with a detached recording studio out there. It's been finished now for about six months.

- **Casco:** How has your living situation changed since the house got finished in what – February?

- **Fox:** Yeah, that sounds about right. I'm pretty sure it was the beginning of March when I started electric, water, and internet service at the Bowling Green house. Earlier this summer, I bought some basic furniture for the Kentucky house – a bed, couch, tv, and small dining set – and I've been spending 1 or 2 nights a week out there plus holidays. We were there for July 4 and plan to be there for Labor Day too. I kept the Nashville apartment exactly the same as it was. I still get most of my mail in Nashville, but I've had some things delivered to Kentucky too. Oh, and I went ahead and registered Banjo in Kentucky just in case he gets out while we're up there.

- **Casco:** What are your long-term plans for the Nashville apartment and your music career?

- **Fox:** I plan to live in Nashville, at least for the next few years. Nashville is where I make my living with my regular venue gigs and established fan base. Frankly, there's no hope for sustainable work as a professional musician in Bowling Green. But I do hope to settle down in Bowling Green once we get married and start a family. It was a great place to grow up. Then I will just be commuting to Nashville for work.

- **Casco:** Have venues or promoters started advertising you differently since you built the place in Kentucky?

- **Fox:** There was some flyer for a show I played here in Nashville back in June. Promoters put together whatever marketing copy they want for these gigs—I don't write it or sign off on it before it goes out.

- **Casco:** Why do you think they referred to you as "Kentucky's Own, Jalen Fox"?

- **Fox:** I don't know, maybe because they post a lot to social media? My Facebook profile page does say that I live in Kentucky. I changed it when the Bowling Green house got finished. I was so excited to have that little piece of heaven.

- **Casco:** Thanks again for your time, Jalen. We'll get back to you soon once we've looked at our chances of getting back to state court.

CLIENT DOCUMENTS

The following documents were produced from Jalen Fox's client file. Together with the intake transcript above, they constitute the factual record for this assignment.

EXHIBIT A

Promotional Flyer — The Blue Anchor Room, Nashville, TN



EXHIBIT B

Warren County, Kentucky Animal Control — Dog License Certificate



WARREN COUNTY ANIMAL CONTROL

1435 Kemptucky Street, Bowling Green, KY 42101 • (270) 555-01193

DOG LICENSE CERTIFICATE

License No.:	WC-2026-084471
Animal Name:	Banjo
Breed / Sex / Color:	Golden Retiever / Male / Golden
Owner Name:	Jalen Fox
Address Where Kept:	4420 Cumberland Trace Rd, Bowling Green, KY 42103
Rabies Cert. No.:	EN-44219 (East Nashville Veterinary Clinic, Nashville, TN)
Issue Date:	June 10, 2026
Expiration Date:	June 10, 2027
Fee Paid:	$10.00

WARREN COUNTY KENTUCKY

EST. 1796

Per Warren County Ordinance § 90-33, any dog kept or harbored within the county for more than thirty (30) days — regardless of the owner's permanent residence — must be licensed with Warren County Animal Control.

EXHIBIT C

Music City Pro Audio — Sales Invoice & Shipping Record

MUSIC CITY PRO AUDIO 2200 8th Ave S, Nashville, TN 37204 • musiccityproaudio.com **INVOICE**		
Invoice No.: MCP-58821	Order Date: 06/05/2026	
Bill To:	Jalen Fox, 118 Shelby Ave, Apt 3B, Nashville, TN 37206	
Ship To:	Jalen Fox, 4420 Cumberland Trace Rd, Bowling Green, KY 42103 (Attn: Studio Install)	
Ship Date:	06/09/2026 — Freight, signature required	
Item		
Universal Audio Apollo x8 Audio Interface	1	$1,899.00
Neumann U 87 Ai Studio Microphone	1	$3,499.00
Acoustic Treatment Panel Set (12-pack)	2	$1,280.00
		Subtotal $6,678.00 • Freight $145.00 • Total $6,823.00
Payment: Visa ending 4482 (billing address on file: Nashville, TN). Customer requested direct delivery to installation site.		

EXHIBIT D

Voter registration record

DAVIDSON COUNTY ELECTION COMMISSION

VOTER REGISTRATION RECORD

State of Tennessee

Voter Name	Jalen Fox	**Registration Status**	**ACTIVE**
Residential Address	118 Shelby Ave, Apt 3B Nashville, TN 37206	**County**	Davidson
Mailing Address	Same as residential address	**Registration Date**	August 18, 2023
Voter ID No.	TN-DAV-26-041872	**Last Record Update**	August 18, 2023

VOTING PRECINCT / DISTRICT INFORMATION

Precinct	Congressional	State Senate	State House
05-02	5	20	52

VOTER PARTICIPATION HISTORY

Election	Participation
November 5, 2024 — General Election	Voted
August 1, 2024 — State/Federal Primary & County General	Voted

Record note: This listing reflects the voter-registration record maintained for the individual identified above. Participation history indicates whether the voter was recorded as voting in the listed election; it does not disclose ballot choices.

CLOSED LIBRARY: AUTHORITIES

1. *Deasy v. Louisville & Jefferson Cnty. Metropolitan Sewer District*
2. *Pitt Excavating LLC v. Pitt*
3. *Robinette v. Emmons*

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47 Fed.Appx. 726
This case was not selected for
publication in the Federal Reporter.
Not for Publication in West's Federal Reporter.
See Fed. Rule of Appellate Procedure 32.1
generally governing citation of judicial decisions
issued on or after Jan. 1, 2007. See also
Sixth Circuit Rule 28. (Find CTA6 Rule 28)
United States Court of Appeals,
Sixth Circuit.

William Wayne DEASY, Plaintiff–Appellant,

v.

LOUISVILLE & JEFFERSON COUNTY METROPOLITAN SEWER DISTRICT, et al., Defendants–Appellees.

No. 02–5452.
|
Sept. 18, 2002.

Synopsis
Business owner brought pro se action against metropolitan sewer district (MSD), asserting violation of state sewer district law and federal mail fraud and racketeering claims. The United States District Court for the Western District of Kentucky, Thomas B. Russell, J., granted sewer district's motion to dismiss for lack of subject matter jurisdiction, and business owner appealed. The Court of Appeals held that: (1) Kentucky, rather than Tennessee, was business owner's domicile, and thus, diversity jurisdiction was lacking; (2) mail fraud was a criminal offense for which there was no private right of action; (3) business owner failed to state federal racketeering claim; and (4) denial of business owner's motion for appointment of counsel was within district court's discretion.

Affirmed.

Procedural Posture(s): On Appeal; Motion to Dismiss.

West Headnotes (3)

[1] **Federal Courts** Particular parties, domicile or residence of in general

Kentucky, rather than Tennessee, was business owner's domicile, and thus, diversity jurisdiction was lacking in his suit against a Kentucky metropolitan sewer district (MSD) where his purported Tennessee residence was one-half of his sister's duplex, while he owned the home where he lived when in Kentucky, and where, although he changed his voter registration to Tennessee, he had yet to vote in Tennessee and voted regularly in Kentucky prior to the registration change, his daughter attended school in Kentucky, the owner was physically present in Tennessee only on weekends, and a house and property that he owned in Tennessee was rented to another. 28 U.S.C.A. § 1332.

50 Cases that cite this headnote

[2] **Action** Criminal acts

Mail fraud is a criminal offense for which there is no private right of action.

7 Cases that cite this headnote

[3] **Federal Civil Procedure** Appointment of counsel

Appointment of counsel for business owner who brought pro se action against metropolitan sewer district (MSD) asserting violation of state sewer district law and federal mail fraud and racketeering claims was not appropriate absent exceptional circumstances and complex factual and legal issues.

2 Cases that cite this headnote

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***727** Before BOGGS and COLE, Circuit Judges; BATTANI, District Judge.*

ORDER

****1** Willard Wayne Deasy, proceeding pro se, appeals a district court judgment dismissing his civil complaint filed under federal question jurisdiction, *see* 28 U.S.C. § 1331, and diversity jurisdiction, *see* 28 U.S.C. § 1332. Deasy has also filed a motion for injunctive relief. This case has been referred to a panel of the court pursuant to Rule 34(j)(1), Rules of the Sixth Circuit. Upon examination, this panel unanimously agrees that oral argument is not needed. Fed. R.App. P. 34(a).

On November 19, 2001, Deasy filed his complaint which alleges that the 35 named Kentucky defendants participated in or encouraged the illegal establishment of sewer districts in violation of Ky.Rev.Stat. Ann. § 76.241. Specifically, Deasy complains that defendant Louisville and Jefferson County Metropolitan Sewer District ("MSD") engaged in the unlawful creation of sewer construction subdistricts by participating in a range of activities, including balloting schemes, collecting illegal fees, and defrauding property owners with unlawful right of acquisition and condemnation suits. Deasy sues the remaining defendants based upon accusations of ***728** wrongdoing in connection with MSD's allegedly illegal actions.

Deasy alleges that his damages will exceed $40,000 and could result in the failure of his business, and that defendant MSD has potentially pulled off a billion dollar scam. He claims residence in Portland, Tennessee, but lists Louisville, Kentucky, for his mailing and business address. All named defendants are Kentucky citizens or entities.

The multiple defendants filed motions to dismiss and Deasy filed a motion for appointment of counsel. The district court denied Deasy's motion for counsel and granted the motions to dismiss after concluding that subject matter jurisdiction was lacking. This timely appeal followed.

We review de novo a district court's judgment dismissing a complaint for lack of subject matter jurisdiction under Fed.R.Civ.P. 12(b)(1). *See Moir v. Greater Cleveland Reg'l Transit Auth.,* 895 F.2d 266, 269 (6th Cir.1990). When the defendant challenges subject matter jurisdiction through a motion to dismiss, the plaintiff bears the burden of establishing jurisdiction. *See id.* The district court's factual findings made in resolving a motion to dismiss are reviewed for clear error while its application of the law to the facts is reviewed de novo. *See RMI Titanium Co. v. Westinghouse Elec. Corp.,* 78 F.3d 1125, 1135 (6th Cir.1996).

Upon review, we conclude that the district court's finding that Deasy was domiciled in Kentucky is not clearly erroneous. To maintain a diversity action, the amount in controversy must exceed $75,000 and the parties must be citizens of different states. *See* 28 U.S.C. § 1332. To establish the "citizenship" required for diversity jurisdiction, Deasy must show more than mere Tennessee residence. He must show that Tennessee is his domicile. *See Stifel v. Hopkins,* 477 F.2d 1116, 1120 (6th Cir.1973). To acquire a domicile within a particular state, a person must be physically present in the state and must have either the intention to make his home there indefinitely or the absence of an intention to make his home elsewhere. *See Gilbert v. David,* 235 U.S. 561, 569–70, 35 S.Ct. 164, 59 L.Ed. 360 (1915); *Von Dunser v. Aronoff,* 915 F.2d 1071, 1072 (6th Cir.1990).

****2** **[1]** The record in this case reveals that Deasy's purported Tennessee residence is one-half of his sister's duplex, while he owns the home where he lives when in Kentucky. Although he has changed his voter registration to Tennessee, Deasy has yet to vote in Tennessee and voted regularly in Kentucky prior to the registration change. His daughter attends school in Kentucky and has never attended school in Tennessee. At best, Deasy is physically present in Tennessee only on weekends, and he admits that his trips there have become increasingly infrequent. Although he inherited a house and property in Tennessee, he currently rents the home to another. In sum, Deasy presented no evidence inconsistent with a present Kentucky domicile. Thus, diversity jurisdiction is lacking.

[2] Moreover, Deasy's complaint cannot otherwise be construed to raise a federal question. *See* 28 U.S.C. § 1331. Deasy alleges two potential bases for federal question jurisdiction: mail fraud and racketeering. Mail fraud is a criminal offense for which there is no private right of action. *See Morganroth & Morganroth v. DeLorean,* 123 F.3d 374, 386 (6th Cir.1997). Therefore, Deasy's first possible basis for federal question jurisdiction must fail. Moreover, Deasy

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did not plead his allegations of mail fraud with sufficient particularity to state a claim under the Racketeer Influenced and Corrupt Organizations Act ("RICO"), 18 U.S.C. §§ 1961– ***729** 68. *See Blount Fin. Servs., Inc. v. Walter E. Heller & Co.,* 819 F.2d 151, 153 (6th Cir.1987). Therefore, Deasy's second possible basis for federal question jurisdiction must also fail.

[3] Finally, the district court did not abuse its discretion by denying Deasy's motion for the appointment of counsel. *See Lavado v. Keohane,* 992 F.2d 601, 605–06 (6th Cir.1993). Appointment of counsel is appropriate only in exceptional cases with complex factual and legal issues. *Id.* at 606. No exceptional circumstances exist in this case.

Accordingly, the motion for injunctive relief is denied, and the district court's judgment is affirmed. Rule 34(j)(2)(C), Rules of the Sixth Circuit.

All Citations

47 Fed.Appx. 726, 2002 WL 31096268

Footnotes

* The Honorable Marianne O. Battani, United States District Judge for the Eastern District of Michigan, sitting by designation.

End of Document

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603 Fed.Appx. 393
This case was not selected for
publication in West's Federal Reporter.
See Fed. Rule of Appellate Procedure 32.1 generally
governing citation of judicial decisions issued on or after
Jan. 1, 2007. See also U.S.Ct. of App. 6th Cir. Rule 32.1.
United States Court of Appeals, Sixth Circuit.

PITT EXAVATING, LLC, Plaintiff–Appellant,

v.

Mary Lou PITT, Defendant–Appellee.

No. 14–5635
|
Feb. 25, 2015.

Synopsis

Background: Limited liability company (LLC) brought action against former wife of LLC's sole owner for conversion and breach of fiduciary duty. The United States District Court for the Middle District of Tennessee, William J. Haynes, Jr., Chief Judge, 2013 WL 6708679, dismissed for lack of subject matter jurisdiction, awarded wife attorney fees, and, 2014 WL 1715442, granted in part and denied in part LLC's motion to alter or amend. LLC appealed.

Holdings: The Court of Appeals, Boggs, Circuit Judge, held that:

[1] district court lacked diversity jurisdiction over action, and

[2] district court did not abuse its discretion in awarding wife attorney fees.

Affirmed.

Procedural Posture(s): On Appeal; Motion to Dismiss.

West Headnotes (2)

[1] **Federal Courts** 🔑 Limited liability companies

Sole owner of limited liability company (LLC) was domiciled in Kentucky, rather than Tennessee, such that district court lacked diversity jurisdiction over LLC's action against owner's former wife, a citizen of Kentucky, for conversion and breach of fiduciary duty; fact that owner leased apartment in Tennessee and faced eviction from Kentucky farm he had shared with his wife did not evince an intent to remain indefinitely in Tennessee, given that he did not change his voter registration, stayed in Kentucky two to three nights per week, filed a materialman's lien against farm, and petitioned to set aside divorce decree awarding farm to wife. 28 U.S.C.A. § 1332.

6 Cases that cite this headnote
More cases on this issue

[2] **Costs, Fees, and Sanctions** 🔑 Conduct of defendants

In limited liability company's (LLC) action against sole owner's former wife for conversion and breach of fiduciary duty, district court did not abuse its discretion in awarding wife attorney fees equal to the entirety of her litigation expenses; district court concluded that entire case was filed vexatiously in an attempt to relitigate a Kentucky divorce proceeding, which had allocated the property at issue in the instant action, such that all of wife's litigation expenses were excessive costs that were incurred as a result of LLC's misconduct.

2 Cases that cite this headnote
More cases on this issue

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***394** On Appeal from the United States District Court for the Middle District of Tennesee.

Before: BOGGS and McKEAGUE, Circuit Judges; PEARSON, District Judge*.

Opinion

BOGGS, Circuit Judge.

This case concerns the question of whether a person's domicile is his new Tennessee apartment or his old Kentucky home. Plaintiff–Appellant Pitt Excavating, LLC (Pitt Excavating), a Tennessee limited-liability company, filed this action for conversion and breach of fiduciary duty under the federal diversity statute against Mary Lou Pitt and John Pitt, III (Trey Pitt), both Kentucky citizens. Pitt Excavating is wholly owned by John Pitt, II (Mr. Pitt), who is Mary Lou's former husband and Trey Pitt's father. Mr. Pitt resided primarily at the Kentucky farm that Mary Lou received in their divorce decree until several weeks before he filed this lawsuit, when he moved to an apartment that he leased in Tennessee after Mary Lou initiated legal process to evict him from the Kentucky farm. The district court initially held that Pitt Excavating met its burden of proving Tennessee citizenship for diversity purposes. However, after Mary Lou presented evidence of Mr. Pitt's continuing Kentucky ties, the district court concluded that Mr. Pitt had used Pitt Excavating to manufacture diversity to file a vexatious law suit against his former wife. Accordingly, it held that it lacked jurisdiction to hear the case and awarded attorney's fees in the amount of $22,376.42 to Mary Lou. Pitt Excavating timely appeals, and we affirm for the reasons set forth below.

I. Background

John Pitt, II is Plaintiff–Appellant Pitt Excavating's sole owner and controlling member. He and Defendant Mary Lou Pitt had been married and divorced three times. After their most recent divorce in 2008, John and Mary Lou cohabitated at the Kentucky farm located at 1840 Peden Mill Road, Franklin, Kentucky, a home that the divorce decree awarded to Mary Lou. While the 2008 divorce decree awarded the Kentucky farm to Mary Lou, Mr. Pitt sold several farm tractors, as well as bales of hay that he cut from the farm estate, without Mary Lou's consent. On July 17, 2013, Mary Lou filed an eviction petition against her former husband. Mary Lou continued to work as bookkeeper and office manager for Pitt Excavating until her employment was terminated, also in July 2013.

On September 10, 2013, Pitt Excavating filed a lawsuit against Mary Lou Pitt for conversion and breach of fiduciary duty in the United States District Court for the Middle District of Tennessee under diversity jurisdiction. The complaint sought a temporary restraining order to prevent Mary Lou Pitt from selling real estate, valuable tools, and equipment that allegedly belonged to Pitt Excavating. Also in September 2013, Mr. Pitt filed a materialman's lien on the farm for approximately $1.7 million and a petition in Kentucky state court to set aside the 2008 divorce decree that awarded the farm to Mary Lou, based on a claim of unconsciounability. The affidavit for the materialman's lien is dated September 13, 2013—three days after the filing of this action—and lists Mr. Pitt's address as "1840 Peden Mill Road, Franklin, Kentucky."

***395** Mary Lou, a Kentucky citizen, moved to dismiss the action for lack of diversity jurisdiction. Although Pitt Excavating is a Tennessee limited-liability company, she argued that its sole owner, John Pitt, II, had been a Kentucky citizen at all times relevant to this action. Pitt Excavating responded in its September 20, 2013 Amended Complaint that Mr. Pitt was domiciled in Tennessee prior to filing this diversity action, contradicting Mr. Pitt's affidavit for the materialman's lien against the farm. Pitt Excavating demonstrated that Mr. Pitt has leased an apartment in Madison, Tennessee since November 2012, has a valid Tennessee commercial driver's license, and pays federal taxes on income that he earned in Tennessee. Pitt Excavating also averred that Mr. Pitt "is able to vote" in Tennessee, but this claim was later contradicted by Mr. Pitt's deposition that was taken on October 1 and filed on October 22, 2013. The district court held on October 1, 2013 that Pitt Excavating proved its citizenship for diversity purposes.

Mary Lou moved to reconsider on October 9, 2013 and the district court heard evidence in support of this motion on October 21, 2013. At the hearing, Mary Lou presented evidence that Mr. Pitt is not a citizen of Tennessee, but rather of Kentucky. This evidence included Mr. Pitt's July 22, 2013 objection to the Kentucky state-court eviction proceedings, in which he asserted that he had "in actuality continued living on that [Kentucky] marital estate together" with Mary Lou since

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their 2008 divorce. Mr. Pitt's son (Trey Pitt) and girlfriend (Kristy Hulsey) corroborated this evidence. Trey testified that his father resided continually at the Kentucky farm until he faced eviction in July 2013.[1] Hulsey testified that, although Mr. Pitt had sometimes stayed with her in the Madison, Tennessee apartment since November 2012, he did not begin to "stay at the apartment almost exclusively" until eviction proceedings began in July 2013. Lou also produced Mr. Pitt's deposition taken on October 1, 2013. In the deposition, Mr. Pitt claimed that he has lived in the Madison, Tennessee apartment with Husley since November 2012 but admitted to spending two to three nights per week at the Kentucky farm throughout September 2013.

After reviewing this evidence, the district court gave Pitt Excavating an opportunity to file a response but warned that it was considering sanctions for unreasonably and vexatiously multiplying proceedings under 28 U.S.C. § 1927. Appellant's Br. at 8. Pitt Excavating's counsel continued to assert that Mr. Pitt was a citizen of Tennessee as of September 10, 2013. On December 18, 2013, the district court held that it lacked jurisdiction to hear this case because the litigants are all Kentucky citizens and awarded attorney's fees and costs under 28 U.S.C. § 1927. *Pitt Excavating LLC v. Pitt,* No. 3:13–CV–00909, 2013 WL 6708679, at *1 (M.D.Tenn. Dec. 18, 2013) *order set aside inpart,* No. 3:13–CV–00909, 2014 WL 1715442 (M.D.Tenn. Apr. 30, 2014). The plaintiff's counsel responded with a motion to alter or amend. On April 30, 2014, the district court partially granted this motion by setting aside sanctions under 28 U.S.C. § 1927, and instead imposed $22,376.42 in sanctions under its inherent authority because it found that Mr. Pitt "is using [Pitt Excavating] and this Court to relitigate issues that the Kentucky court clearly decided and to which John W. Pitt, II agreed. Such multiplication ***396** of proceedings is vexatious and bad faith...." *Pitt Excavating,* 2014 WL 1715442, at *4. Pitt Excavating timely appeals.

II. Standard of Review

"We review a district court's legal determination of subject matter jurisdiction *de novo* and factual determinations for clear error." *U.S. Motors v. Gen. Motors Europe,* 551 F.3d 420, 422 (6th Cir.2008). "We also review for abuse of discretion the decision to impose sanctions pursuant to Rule 11, Rule 26, 28 U.S.C. § 1927, and the district court's inherent power." *Jones v. Illinois Cent. R. Co.,* 617 F.3d 843, 850 (6th Cir.2010). "An abuse of discretion occurs when a court commits a clear error of judgment by, for example, applying the wrong legal standard or relying on clearly erroneous findings of fact." *Green v. Bank of Am. Corp.,* 530 Fed.Appx. 426, 429 (6th Cir.2013) (internal quotation marks omitted).

III. Discussion

A

[1] "[F]ederal courts have a continuing obligation to inquire into the basis of subject-matter jurisdiction to satisfy themselves that jurisdiction to entertain an action exists. This duty applies irrespective of the parties' failure to raise a jurisdictional challenge on their own, and if jurisdiction is lacking, dismissal is mandatory." *Campanella v. Commerce Exch. Bank,* 137 F.3d 885, 890 (6th Cir.1998) (citations omitted). Pitt Excavating argues that the district court has subject-matter jurisdiction over this dispute under 28 U.S.C. § 1332, which provides the district courts with original jurisdiction over "all civil actions where the matter in controversy exceeds the sum or value of $75,000, exclusive of interest and costs," and involves "citizens of different States."

The amount in controversy in this case, approximately $1 million, is well in excess of the jurisdictional requirement. Mary Lou and Trey Pitt are citizens of Kentucky. As a limited-liability company, Pitt Excavating is a citizen of every state of citizenship of its members. *Carden v. Arkoma Assocs.,* 494 U.S. 185, 195, 110 S.Ct. 1015, 108 L.Ed.2d 157 (1990). Pitt Excavating's only member is John Pitt, II. Therefore, there is diversity of citizenship as long as Mr. Pitt is not a citizen of Kentucky. Despite Pitt Excavating's argument that Mr. Pitt is a citizen of Tennessee, the district court held that he is a citizen of Kentucky and so it could not exercise jurisdiction under 28 U.S.C. § 1332.

"State citizenship for the purpose of the diversity requirement is equated with domicile. A person's previous domicile is not lost until a new one is acquired." *Von Dunser v. Aronoff,* 915 F.2d 1071, 1072 (6th Cir.1990) (citations omitted). "To acquire a domicile within a particular state, a person must be physically present in the state and must have either the intention to make his home there indefinitely or the absence of

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an intention to make his home elsewhere." *Stifel v. Hopkins,* 477 F.2d 1116, 1120 (6th Cir.1973). "[F]ederal jurisdiction is tested according to the facts as they exist at the time an action is initiated." *Television Reception Corp. v. Dunbar,* 426 F.2d 174, 177 (6th Cir.1970). The factual dispute at issue is whether Mr. Pitt's threatened eviction from the Kentucky farm in July 2013, his lease of a Tennessee apartment since November 2012, and his Tennessee licenses obtained in 2011 and 2012 evince an intent to remain indefinitely in Tennessee as of September 10, 2013, the date of filing.

In his July 22, 2013 objection to the Kentucky state-court eviction proceedings, ***397** Mr. Pitt declared that he had been living with Mary Lou on their "marital estate" in Kentucky since their divorce in 2008. Mr. Pitt's son also testified that his father continually resided at the Kentucky farm until he faced eviction in July 2013, and Mr. Pitt's girlfriend testified that he "stayed almost exclusively at the [Madison, Tennessee] apartment" only after eviction proceedings began in July 2013. Further, Mr. Pitt testified on October 1, 2013 that he voted in Kentucky in 2012 and continues to be registered to vote in Kentucky as of that date. Therefore, as of July 2013, Mr. Pitt was domiciled in Kentucky.

Pitt Excavating argues on appeal that Mr. Pitt abandoned his Kentucky domicile and "became a domiciliary of Tennessee in August 2013" in response to an eviction action brought by Mary Lou Pitt. Appellant's Br. at 18 ("Ms. Pitt's attorneys in Kentucky demanded on July 9 that [Mr. Pitt] vacate the Kentucky farmhouse immediately and then instituted eviction proceedings against him. There is no mystery as to why [Mr. Pitt] did as he was asked and moved to Tennessee."). However, the eviction, by itself, does not establish that Mr. Pitt abandoned Kentucky for Tennessee because "one who is in a place solely by virtue of superior force exerted by another should not be held to have abandoned his former domicile." *Stifel,* 477 F.2d at 1121; *see also Denlinger v. Brennan,* 87 F.3d 214, 216 (7th Cir.1996) ("[S]ince domicile is a voluntary status, a forcible change in a person's state of residence does not alter his domicile."). A person who has been forcibly removed from a residence in one state can demonstrate intent to domicile in a difference state in the typical way through "affidavits of intention, transfer requests, registration for driver's licenses, opening bank accounts, addressing tax returns, motive for establishing domicile, and other physical facts evidencing the desire to remain [in the new state]." *Stifel,* 477 F.2d at 1122. But Mr. Pitt has not done so.

Mr. Pitt frequently stayed at his Madison, Tennessee apartment in the weeks leading up to the lawsuit, satisfying the physical-presence requirement. However, Mr. Pitt acquired the apartment in November 2012, while he was a Kentucky citizen, and there is no indication that his on-and-off stay in this apartment since that time—including post-eviction-proceedings activities—changed his domicile from Kentucky to Tennessee.

Since eviction proceedings began in July 2013, Mr. Pitt has done nothing to evince an intention to stay in Tennessee indefinitely, such as changing his voter registration from Kentucky to Tennessee. If anything, he has demonstrated a continued attachment to Kentucky. Even though he stayed in Tennessee more frequently in response to the eviction proceedings, Mr. Pitt still admitted to staying in Kentucky two to three nights per week as of September 2013. He did so notwithstanding Mary Lou's attempt to evict him. This behavior is highly probative of a continuing desire to remain domiciled at the Kentucky farm. Furthermore, Mr. Pitt has displayed an intention to reclaim his old Kentucky home at the time he filed this action on September 10, 2013. He filed a materialman's lien against the farm and petitioned to set aside the divorce decree awarding the farm to Mary Lou Pitt in Kentucky state court. He even listed his address as "1840 Peden Mill Road Franklin, Kentucky" in the affidavit for the materialman's lien signed on September 13, 2013—three days after the commencement of this lawsuit.

In light of these factors, spending four to five nights a week for a few weeks in Madison, Tennessee does not demonstrate that Mr. Pitt abandoned Kentucky and ***398** intended to live in Tennessee indefinitely. Nor do the other items that Mr. Pitt relies on, such as his Tennessee commercial driver's license and contractor's license, demonstrate any such intention. Mr. Pitt acquired the licenses in 2011 and 2012, when he was undoubtedly a citizen of Kentucky.[2] The licenses are minimally probative of intent to domicile in Tennessee because Mr. Pitt acquired them well before the event—proceedings to evict him from the Kentucky farm—which he now claims to be the cause of his intent to domicile in Tennessee. Accordingly, it was not clearly erroneous for

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the district court to conclude that Mr. Pitt was a citizen of Kentucky when this lawsuit was filed.

Pitt Excavating also argues on appeal that the district court deprived it of notice when it held an evidentiary hearing on jurisdiction at the October 21, 2013 hearing because that hearing was originally scheduled to discuss preliminary-injunction issues. Appellant's Br. at 13–14. May Lou Pitt filed a motion to reconsider on October 9, 2011 and specifically requested that the district court hold an evidentiary hearing on jurisdiction on October 21, 2013. Pitt Excavating neither objected to this request nor asked for a continuance. While the district court did not expressly grant Mary Lou's motion before holding the evidentiary hearing, it did not need to do so because the hearing related to subject-matter jurisdiction. The district court had a continuing obligation to inquire into the basis of subject-matter jurisdiction, even in the absence of a motion from a party. *Campanella,* 137 F.3d at 890. To meet this obligation, "a trial court has wide discretion to allow affidavit, documents and even a limited evidentiary hearing to resolve disputed jurisdictional facts." *Ohio Nat. Life Ins. Co. v. United States,* 922 F.2d 320, 325 (6th Cir.1990). Therefore, even without Mary Lou's motion, the district court could have requested information pertaining to diversity jurisdiction from the parties. Pitt Excavating also had an opportunity to respond to the district court's jurisdictional inquiry after the October 21, 2013 evidentiary hearing. The district court considered the arguments supporting diversity jurisdiction that Pitt Excavating raised in its response on November 4, 2013, but found them unpersuasive. *Pitt Excavating,* 2013 WL 6708679, at *2.

B

[2] A federal "district court has the inherent authority to award fees when a party litigates in bad faith, vexatiously, wantonly, or for oppressive reasons." *First Bank of Marietta v. Hartford Underwriters Ins. Co.,* 307 F.3d 501, 512 (6th Cir.2002) (internal quotation marks omitted). The district court made a factual finding that Mr. Pitt had attempted to use Pitt Excavating to manufacture diversity in an attempt to relitigate the Kentucky divorce proceeding. *Pitt Excavating,* 2013 WL 6708679, at *5. In a subsequent order ruling on Pitt Excavating's motion to alter or amend, the district court again found that the prior Kentucky state-court divorce proceeding allocated the property at issue in this lawsuit. "Such multiplication of proceedings," the district court concluded, "is vexatious and bad faith." *Pitt Excavating,* 2014 WL 1715442, at *4.

Pitt Excavating neither disputes the district court's finding that it filed this case vexatiously to multiply proceedings nor challenges the court's invocation of its inherent authority to award fees. Instead it ***399** argues that "[n]ot all the attorney's fees expended by the Defendant would be properly recoverable," Appellant's Br. at 20, because "[a]n attorney is liable ... solely for excessive costs resulting from the violative conduct," *Riddle v. Egensperger,* 266 F.3d 542, 553 (6th Cir.2001). However, all of Mary Lou's litigation expenses are excessive costs that were incurred as a result of the plaintiff's misconduct because the district court concluded that the entire case was filed vexatiously. Therefore, the district court did not abuse its discretion in awarding attorney's fees equal to the entirety of Mary Lou's litigation expenses.

IV. Conclusion

For the aforementioned reasons, we AFFIRM the district court's judgment.

All Citations

603 Fed.Appx. 393

Footnotes

* The Honorable Benita Y. Pearson, United States District Court for the Northern District of Ohio, sitting by designation.

1 Mr. Pitt threatened to add his son as a defendant in this lawsuit for testifying at the October 21, 2013 hearing. *Pitt Excavating LLC,* 2013 WL 6708679, at *3. Mr. Pitt added Trey as a defendant on November 4, 2013.

2 It would have been a class D felony for Mr. Pitt to have voted in Kentucky in 2012 if these licenses showed that he was a resident of Tennessee when acquiring them. K.R.S. 119.165(2).

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Only the Westlaw citation is currently available.
United States District Court, E.D. Kentucky,
Southern Division.
Pikeville.

Ronald ROBINETTE, et al., Plaintiffs,

v.

Shawna J. EMMONS, et al., Defendants.

No. 7:19-CV-2-REW
|
Signed January 25, 2019

Attorneys and Law Firms

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Bradford L. Breeding, Brown and Breeding, PSC, London, KY, for Defendant State Farm Mutual Automobile Insurance Company.

ORDER

Robert E. Wier, United States District Judge

***1** The Court previously ordered briefing on the existence of subject-matter jurisdiction in this removed case. *See* DE #4 (Order). Specifically, the Court required clarification concerning the citizenship(s) of Defendant Shawna J. Emmons. *See id.* Defendant State Farm Mutual Automobile Insurance Company (State Farm) responded. DE #5 (Response). Despite having an opportunity, *see* DE #4, no other party weighed in. The issues are, thus, ripe for consideration.

District courts "have original jurisdiction of all civil actions where the matter in controversy exceeds the sum or value of $75,000, exclusive of interest and costs, and is between," as relevant here, "citizens of different States." 28 U.S.C. § 1332(a)(1); *see also* U.S. Const. Art. III § 2 ("The judicial Power shall extend ... to Controversies ... between Citizens of different States[.]"). Courts refer to this concept as "diversity jurisdiction," a form of subject-matter jurisdiction in a case. *See Grupo Dataflux v. Atlas Global Grp., LP*, 124 S. Ct. 1920, 1925-26 (2004); *see also* DE #1, at ¶ 7 (State Farm asserting jurisdiction only under § 1332).

Diversity jurisdiction "require[s] complete diversity of citizenship," *i.e.*, "the citizenship of each plaintiff" must be "diverse from the citizenship of each defendant." *Caterpillar Inc. v. Lewis*, 117 S. Ct. 467, 472 (1996). Thus, phrased another way, for diversity to exist, "no plaintiff" can be "a citizen of the same state as any defendant." *V & M Star, LP v. Centimark Corp.*, 596 F.3d 354, 355 (6th Cir. 2010).[1] Complete diversity is a statutory, not constitutional, requirement. *Owen Equip. & Erecting Co. v. Kroger*, 98 S. Ct. 2396, 2402 n.13 (1978).

Importantly, "Federal courts are courts of limited jurisdiction," and "the burden of establishing" a jurisdictional basis "rests upon the party asserting jurisdiction." *Kokkonen v. Guardian Life Ins. Co. of Am.*, 114 S. Ct. 1673, 1675 (1994). Here, the burden is State Farm's, as the removing defendant. *See, e.g., Alexander v. Elec. Data Sys. Corp.*, 13 F.3d 940, 948-49 (6th Cir. 1994). The Court, no party questions, has an omnipresent "duty to consider [its] subject matter jurisdiction in regard to every case and may raise the issue *sua sponte*." *Answers in Genesis of Ky., Inc. v. Creation Ministries Int'l, Ltd.*, 556 F.3d 459, 465 (6th Cir. 2009); *see also Hertz Corp. v. Friend*, 130 S. Ct. 1181, 1193 (2010) ("Courts have an independent obligation to determine whether subject-matter jurisdiction exists, even when no party challenges it.").

***2** In the Notice of Removal, State Farm asserted that Plaintiffs' Complaint alleges that Emmons "is a citizen and domiciliary of Michigan." DE #1, at ¶ 1. That was a misrepresentation of the Complaint, which, in fact, alleged that Emmons "is a non-resident" of Kentucky who "resid[es]" in Michigan. DE #1-1, at ¶ 2. State Farm, thus, conflated residence and domicile. Residence is not synonymous with citizenship (a function of domicile) for § 1332 purposes. *See, e.g., Kaiser v. Loomis*, 391 F.2d 1007, 1009 (6th Cir. 1968). "For adults, domicile is established by physical presence in a place in connection with a certain state of mind concerning one's intent to remain there." *Miss. Band of Choctaw Indians v. Holyfield*, 109 S. Ct. 1597, 1608 (1989). Simply put, "one can reside in one place but be domiciled in another[.]" *Id.*

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In the show-cause response, State Farm submitted various pieces of proof. One such item is a print-out of Emmons's purported Facebook profile, which indicates that Emmons currently "lives" in Kentucky and is "from" Michigan. *See* DE #5-1. The second and third items are website print-outs indicating that Emmons is not registered to vote in, and does not have a driver's license issued by, Kentucky. *See* DE ##5-2 & 5-3. The fourth is a LexisNexis print-out listing a current, and list of prior, addresses for Emmons. *See* DE #5-4. The exhibit suggests that since September 2006, Emmons has lived in Michigan, save for a 6-month period from December 2016—May 2017 when she had a Kentucky address. *See id.*

In the Court's view, and with no counter-advocacy from any party, these documents—particularly the LexisNexis print-out—adequately establish Emmons's citizenship in Michigan alone, in context. As the Court suggested above, citizenship reflects a "person's long-term plan for a state of habitation[,] rather than just current residence." *Myrick v. WellPoint, Inc.*, 764 F.3d 662, 664 (7th Cir. 2014); *see also RTP LLC v. ORIX Real Estate Capital, Inc.*, 827 F.3d 689, 692 (7th Cir. 2016) (defining citizenship as "the place where a person intends to live in the long run"). The extant proof indicates Emmons's "long-term" habitation in Michigan. *See* DE #5-4 (reflecting 13-year history of Michigan addresses). The lone deviation in this consistent 13-year record is a 6-month period that Emmons had a Kentucky address. Courts consistently reject such short-term, transient abnormalities as citizenship markers. *See, e.g., Myrick*, 764 F.3d at 664 (differentiating citizenship from a person's "current residence"); *Kaiser*, 391 F.2d at 1009-10 (rejecting "any finding of domicile" based on "the temporary character of [the at-issue] residence" and holding that a residence "temporary in character ... could not effect a change in domicile"). That Emmons apparently is not registered to vote in, and does not have a driver's license issued by, Kentucky fortifies that she did not obtain Kentucky citizenship. The information garnered from Facebook is not necessarily inconsistent with this view. *See, e.g., RTP*, 827 F.3d at 692 ("It is possible to reside in one state while planning to return to a long-term residence in another state.").

The Court thus holds that, on this record, State Farm adequately proved Emmons to be a citizen of Michigan. Complete diversity, therefore, exists. The Court, per this analysis, retains the case on the active docket and **DISCHARGES** the Show Cause Order (DE #4).

Further, to ensure the case is on track to prompt resolution, and pursuant to Fed. R. Civ. P. 16 and 26, the Court **ORDERS** as follows:

1. **Within 21 days**, the parties, by counsel, shall meet, either in person or by telephone, to consider the topics Rule 26(f)(2) mandates.

***3** 2. **Within 14 days** of the meeting, the parties shall file a joint status report containing:

a. The discovery plan, containing, *inter alia*, the parties' views and proposals on all items Rule 26(f)(3) lists and any standard scheduling order deadlines / requirements on which the parties wish the Court to consider specific timing proposals;

b. The parties' estimate of the time necessary to file pretrial motions;

c. The parties' belief(s) as to whether the matter is suitable for some form of alternative dispute resolution and any proposed timing;

d. The parties' estimate as to the likely length of trial and dates mutually convenient for trial; and

e. The parties' decision whether, as to this matter, they voluntarily consent to the jurisdiction of a United States Magistrate Judge for all purposes, including trial and entry of final judgment, pursuant to 28 U.S.C. § 636(c). The parties, if they choose to consent, should so indicate by signing the attached consent form no later than the date the joint status report is due. The Clerk shall then reassign this matter to the appropriate Magistrate Judge on this docket without the necessity of further Order of the Court. *See* LR 73.1(c). The parties are free to withhold consent without adverse substantive consequences.

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Footnotes

1 State Farm alleges that "service was attempted upon Emmons," but the "Complaint and Summons was not delivered or deliverable to Emmons as requested." DE #1, at ¶ 6. Assuming this is true, Emmons remains a named defendant, and the Court "must consider the citizenship of ... an unserved and nonparticipating defendant[ ] in the jurisdictional analysis." *Howard v. Pearl Interactive Network Inc.*, No. 5:16-CV-362-REW, 2018 WL 3421824, at *2-3 (E.D. Ky. July 12, 2018) (extensively analyzing the issue). No party disputes this.

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